

to determine the value of professional services rendered in its court. *Vo v. Las Virgenes Municipal Water Dist.* (2000) 79 Cal.App.4th 440, 446. A declaration attesting to the accuracy of the fee bill is entitled to a presumption of credibility. *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.

In the declaration in support of the motion, Plaintiff/Cross-Defendant Chen requests fees and costs as follows:

- Attorney X. Young Lai: billed \$28,400 (56.8 hours billed at \$500/hour) (66.8 hours were billed, and a deduction of 10 hours was made for the declaratory relief work), and requests a 2.0 multiplier under the lodestar method, resulting in fees of \$56,800.
- Attorney X. Young Lai: billed \$11,850 (17.7 hours at \$500/hour drafting motion and 6 hours of anticipatory billing at \$500/hour).
- \$120 in costs for filing the anti-SLAPP motion and the present motion.

The Court has reviewed the declaration of counsel Lai and the billing ledger attached thereto and presided over the underlying litigation. The Court, cognizant of the prevailing attorney's fees in this county for work of this nature, finds that counsel Lai is entitled to compensation at a reasonable rate of \$400.00 per hour.

Turning next to whether the number of hours incurred by the firm is reasonable, the Court has carefully reviewed the billing ledger attached to the declaration of counsel Lai. The Court finds that the 56.8 hours claimed for the underlying anti-SLAPP motion and the 23.7 hours claimed for the fees motion to be unreasonable and excessive in light of the nature and complexity of the issues presented. A reduction is also appropriate because Plaintiff/Cross-Defendant prevailed only as to two of the three claims. The Court shall reduce the billed/anticipated to be billed hours by 50%. The Court finds that 45.25 hours of time is appropriate, all things considered.

The Court, thus, concludes that Plaintiff/Cross-Defendant is entitled to total fees of \$18,100.00 as well as \$120.00 in costs.

### **3. CU0002367      Diana Dentoni vs. Patrick Gilmore**

Plaintiff apparently reserved a date for the filing of a motion, presumably for leave to file a first amended complaint. Pursuant to Code of Civil Procedure section 1005(b), Plaintiff was required to file and serve a notice of motion and motion at least sixteen court days before the hearing. Moreover, the period of notice is extended by additional days depending on the method of service. *See, e.g.,* Code Civ. Proc. §§ 1005, 1010.6(a)(3). Here, the April 30, 2026, notice of motion is deficient as it does not include a hearing date. The May 5, 2026, notice is also deficient as it references a May 8, 2026, hearing date. The matter is withdrawn from calendar. No motion is set for May 29, 2026 and no action shall be taken in connection with the filed motion unless and until it is duly noticed for hearing and served.

Defendant Ariana Couch's motion to strike under Code of Civil Procedure section 425.16 (Anti-SLAPP) is denied.

Legal Standard for Anti-SLAPP Motion

"Code of Civil Procedure section 425.16 sets out a procedure for striking complaints in harassing lawsuits that are commonly known as SLAPP suits ... which are brought to challenge the exercise of constitutionally protected free speech rights." *Kibler v. Northern Inyo County Local Hospital Dist.* (2006) 39 Cal.4th 192, 196, 46 Cal.Rptr.3d 41, 138 P.3d 193.<sup>1</sup> A cause of action arising from a person's act in furtherance of the

---

<sup>1</sup> Code of Civil Procedure section 425.16 provides, in relevant part:

(a) The Legislature finds and declares that there has been a disturbing increase in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances. The Legislature finds and declares that it is in the public interest to encourage continued participation in matters of public significance, and that this participation should not be chilled through abuse of the judicial process. To this end, this section shall be construed broadly.

(b)(1) A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the Plaintiff has established that there is a probability that the Plaintiff will prevail on the claim.

(2) In making its determination, the Court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.

...

(e) As used in this section, "act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue" includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.